

Notary Fees

Plaintiff seeks notary fees. Defendants appear to concede these in their reply brief, and they will be allowed.

Transcripts

Plaintiff seeks costs relating to transcripts not ordered by the court. Transcript fees are not recoverable unless ordered by the Court.³ Plaintiff appears to concede the striking of these costs in her opposition. These costs will be stricken.

Experts

Plaintiffs appear to concede that expert fees are not allowable here. Code of Civ. Pro. § 1033.5(b)(1).

Investigation/Title Research

Plaintiffs appear to concede that investigation and title research costs are not allowable here. Code of Civ. Pro. § 1033.5(b)(2).

Postage/Telephone/Copying

Plaintiffs appear to concede that postage, telephone, and copying costs are not allowable here. Code of Civ. Pro. § 1033.5(b)(3).

The parties are directed to recompute the amount of costs awarded based on the Court's rulings and to submit new contentions no later than June 25, 2026. The matter will be continued to July 23, 2026, 9:00 a.m. The Court will not take *new arguments* not initially raised, but will only accept clarifications. If the parties stipulate to the *amount* in response to the Court's order—the Court does not expect concessions as to appealability or propriety of the orders, but simply a mathematical agreement—then the July 23, 2026 hearing may be vacated.

19. 9:00 AM CASE NUMBER: N26-0056
CASE NAME: PETITION OF: NATIONAL DEFAULT SERVICING CORPORATION
HEARING IN RE: PETITION FOR RELEASE OF SURPLUS FUNDS
FILED BY: NATIONAL DEFAULT SERVICING CORPORATION
TENTATIVE RULING:

On May 10, 2024, the subject property—1250 Summer Lane, Richmond, California—was sold at foreclosure. Petitioner, the foreclosure trustee has attempted to contact the interested party, Janelle Williams, but have been unsuccessful. Petitioner has paid outstanding liens. On January 16, 2026, the Court granted Petitioner's request to deposit undistributed surplus proceeds of the trustee's sale with the court. Notice was then sent to all potential claimants.

As of this date, the Court has received no claims to the surplus funds. The Court will now order that these surplus funds remain in trust. If there are no claims to these surplus funds for the statutory

³ "Ordered by the court" modifies "transcript," not "court reporter."

period, the funds will escheat to the State.

This case is dismissed.

20. 9:00 AM CASE NUMBER: N26-0261
CASE NAME: LOS HERMANOS LOPEZ, LLC, VS. EUN EIM
***HEARING ON MOTION IN RE: FOR NEW TRIAL**
FILED BY: EIM, EUN A.
TENTATIVE RULING:

On March 27, 2026, the date set for trial, Plaintiff Los Hermanos Lopez, LLC and Defendants Eun A. Kim, individually and dba Korean BBQ Plus appeared before this Court. Both Plaintiff and Defendants were represented by counsel. No jury fee had been paid. Over a request for a continuance by Defendants, the Court proceeded with a bench trial. The trial concluded the same day, and the Court found in favor of the Plaintiff. Defendant filed this Motion for a New Trial on April 6, 2026. The Court has received no timely opposition to this Motion. It is worth noting, however, that Plaintiff has filed paperwork for Judgment and Writ of Possession, as well as opposition to an intervening ex parte application to stay the execution of judgment. It is presumed that Plaintiff opposes this Motion, although an opposition should have been filed.

Defendants advance several reasons for a new trial. First, they argue that they were not prepared for trial because it was noticed as a jury trial. This is of no consequence, as parties are expected to be ready for the first day of trial, regardless of its format. Nothing on the docket or otherwise suggested that March 27 was to be a pre-trial conference. There was additionally no evidence on the docket that a jury fee had been posted, and Defendant would not have been able to post a jury fee as the deadline had passed. Code Civ. Pro. § 631(c)(1). The Court provided the parties an opportunity to resolve the issue by giving them time with a representative from the Congress of Neutrals. Counsel was given sufficient time to return to his office and retrieve key documents. There was simply no prejudice or irregularity.

The Court additionally heard and determined that it was not appropriate to address Defendants' unilateral attempt to offset the purported overcharges by failing to pay rent. The Court determined that this process was not a reasonable interpretation of the lease agreement. This argument was fully considered and rejected. Moreover, there was substantially evidence at trial—volunteered by Defendant herself—that the reason she stopped paying rent was that her business had insufficient funds, not that she deemed there had been an overcharge.

Finally, Defendants argue that because the Three-Day Notice contained rent due from more than one year prior (January 2025) and an erroneous amount for October 2025, it failed to comply with the strict requirements and thus the unlawful detainer proceeding was invalid. As to the first issue, Defendants cite *Bevill v. Zoura* (1994) 27 Cal.App.4th 694, 697. Defendants ignore, however, the subsequent case of *Levitz Furniture Co. v. Wingtip Communications* (2001) 86 Cal.App.4th 1035, which clarified *Bevill*. In *Levitz*, as here, there was unpaid *recent* rent but the three-day notice contained overdue rent from more than one year prior. The Court held, “[W]e see no reason why a three-day notice that demands payment of rents due within one year of the notice is automatically invalidated